

## 25LBCV01413 25LBCV01413

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-06-23

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### 1. Background

#### Facts

Plaintiff, Neel Karia filed this

action against Defendant, Memorial Care Long Beach Medical Center for medical

malpractice and related claims.

Plaintiff filed the complaint on 5/09/25. The complaint alleges, on page 14, that he

sought care from Defendant on 3/01/24 but then sought care at another facility

on 3/03/24 because Defendant had not fixed his issue.

### 2.

12/11/25

Hearing on Demurrer

The Court heard Defendant's

demurrer to the complaint on 12/11/25.

The Court sustained the unopposed demurrer without leave to amend,

ruling as follows:

Defendant demurs to the complaint,

contending it is barred by the one-year statute of limitations set forth in CCP

§340.5. CCP §340.5 provides, "In an

action for injury or death against a health care provider based upon such

person's alleged professional negligence, the time for the commencement of

action shall be three years after the date of injury or one year after the

plaintiff discovers, or through the use of reasonable diligence should have

discovered, the injury, whichever occurs first."

As noted above, Plaintiff's

complaint alleges he was treated by Defendant and discharged on 3/01/24. He alleges he discovered Defendant's

negligence no later than 3/02/24, when he sought care from another facility for

the same injury because Defendant had not fixed the injury. The complaint therefore shows, on its face,

that it is barred by the statute of limitations.

Additionally, Defendant correctly

notes that Plaintiff fails to allege he served Defendant with a Notice of

Intent to Sue, as required by CCP §364(a), at least ninety days prior to filing

this action.

Any opposition to the demurrer was

due on or before 11/26/25. Plaintiff has

not filed timely opposition to the demurrer, and the Court will not consider

late-filed opposition.

The complaint, on its face, shows

that it is barred by the statute of limitations. The demurrer is therefore sustained. In light of the lack of opposition, leave to

amend is denied. Defendant is ordered to

prepare a proposed judgment of dismissal for processing.

3. 5/19/26

Hearing on Motion for Reconsideration

Plaintiff moved for reconsideration

per CCP §1008(b). The Court ruled as

follows:

A motion for reconsideration cannot

be entertained once judgment is entered, and the limitation is

jurisdictional. See APRI Ins. Co. v.

Superior Court (1999) 76 Cal.App.4th 176, 181. The Court entered judgment in this case on

12/15/25 and therefore lacks jurisdiction to rule on the motion for

reconsideration.

4. 5/19/26

Hearing on Motion to Vacate Dismissal

Plaintiff also moved to vacate the

dismissal that resulted from the sustaining of the demurrer without leave to

amend. Plaintiff moves pursuant to CCP

§473(b). The Court ruled as follows:

§473(b) permits the Court, in its

discretion, to vacate a dismissal entered as a result of a party's mistake or

excusable neglect. In *J.A.T.*

*Entertainment, Inc. v. Reed* (1998) 62 Cal.App.4th 1485, 1492-1494,

the Court held that the mandatory provision of §473(b) applicable to attorney

neglect applies if a dismissal is entered as a result of the attorney's failure

to oppose the dismissal motion. While not

directly on point, the Court is inclined to find §473(b) can be used as a

vehicle to vacate a dismissal entered as a result of a self-represented party's

excusable neglect.

Plaintiff explains a variety of

circumstances that caused him to file his opposition to the demurrer both

untimely and in the wrong action. The

Court is satisfied that the negligence described is excusable. The more difficult issue, however, is whether

the negligence caused the dismissal to be entered.

As discussed above, the dismissal

was entered as a result of the complaint showing, on its face, that it was

barred by the statute of limitations, as well as Plaintiff's failure to file

the required 90-day notice. Thus, unless

Plaintiff can establish neither defect is fatal to the complaint, then the

dismissal was not entered "as a result of" the failure to oppose the demurrer,

but instead as a result of the fatal defects in the complaint itself.

Plaintiff's argument in this regard

is found at page 7 of his motion for reconsideration, which the Court has read

and considered in connection with the motion to vacate dismissal. Plaintiff argues that (a) failure to file the

90-day notice is a curable error, (b) failure to file the 90-day notice should

result in professional discipline for the attorney who fails to file the

notice, not in dismissal of the action, and (c) the SOL was tolled and

therefore the statute of limitations does not bar the case.

Plaintiff cites no authority for

his first two contentions. CCP §364(a)

provides, "No action based upon the health care provider's professional

negligence may be commenced unless the defendant has been given at least 90

days' prior notice of intention to commence the action." The language of the statute is mandatory, and

nothing in the statute suggests an attorney should be disciplined for failure

to comply or the error can be cured.

Plaintiff also fails to

meaningfully brief his second contention.

He contends the statute of limitations is essentially indefinitely

tolled because he has a subdural hematoma and is therefore disabled. Pursuant to Preferred Risk Mutual Ins. Co. v.

Reiswig (1999) 21 Cal.4th 208, 222, when a statute of limitations

has specific tolling provisions, no other tolling provisions can be read into

the statute. The medical malpractice

statute of limitations, found in CCP §340.5, allows for tolling as a result of

fraud, intentional concealment, the presence of nontherapeutic and

nondiagnostic foreign bodies, or, in limited circumstances, where the plaintiff

is a child under the age of eight.

Nothing in the statute contemplates tolling as a result of disability;

indeed, many incidents of alleged medical malpractice result in temporary or

permanent disability, and the Legislature certainly contemplated this reality

when drafting the statute of limitations.

The Court finds, therefore, that

the dismissal did not result from Plaintiff's failure to oppose the demurrer,

but instead from his failure to timely file his complaint in the first

instance. The motion to vacate the

dismissal is therefore also denied.

5. Motion

to Correct Clerical Error

On 1/16/26, Plaintiff filed this

motion, pursuant to which he seeks to have the Court correct various errors he

has made in connection with this litigation and two other lawsuits he filed,

which he deems to be “clerical error.”

This action has been dismissed in

its entirety. Pursuant to *Maria P. v.*

*Riles* (1987) 43 Cal.3d 1281, 1290, the Court retains only ancillary

jurisdiction at this point. Plaintiff’s

motion does not relate to matters ancillary to the judgment, and therefore the

Court lacks jurisdiction to hear the motion.

It is taken off calendar.

Defendant is ordered to give

notice.

Parties who intend to submit

on this tentative must send an email to the court at [email protected] indicating intention to submit on the tentative

as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. If a party submits on

the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If any party does not submit on the tentative, the party should make arrangements to appear remotely at the hearing on this matter.